

Order Inviting Answer, Setting April 9 and April 13 Briefing, and Continuing Stay

United States Court of Appeals for the Fourth Circuit

In re Cinder Lake Health Network, Inc., Petitioner

Related district action: *Rhea Calder v. Cinder Lake Health Network, Inc.*

Docket: SYN-CA4-26-WR-4401

Document code: A12

Filed: 2026-04-03

Invitation to answer

Rhea Calder is ordered to file an answer addressing the petition's merits by April 9, 2026.

Rule 21 allows the court to deny without an answer, so petition acceptance alone did not oblige Calder to respond. This order now directs Calder to file a merits answer by April 9 and identifies the petition to which she must respond. The earlier emergency opposition remains limited to preservation and does not satisfy this newly imposed answer requirement.

Reply schedule

Cinder Lake may reply by April 13. No other merits filing is authorized without leave.

The April 13 reply date follows the April 9 answer deadline and limits Cinder Lake to answering the merits response. The schedule is expedited because the district production dispute is stayed, yet it affords distinct filings in sequence. No surreply or supplemental appendix is authorized by implication. The answer must precede the reply so the petitioner responds to the position Calder actually presents.

Continuing stay

The interim protection remains in force through disposition while nonprivileged district discovery may continue.

The interim order continues to stay the entire March 25 compelled protected production, including the twenty underlying items and attachments never delivered to Ashe. Her earlier protected memorandum-and-log review copies remain governed by the district order. Independent factual discovery may proceed. The stay preserves what remains undisclosed without retracting the review exchange, and it does not establish Cheney, privilege, or waiver on the merits.

Argument boundary

The matter is not yet calendared for oral argument. Any argument requires a separate express order with a matching date.

Local Rule 21 ordinarily contemplates submission without oral argument. This order does not set a hearing date, reserve a courtroom, or promise argument. The court may decide the petition on the papers unless it later enters a separate order setting argument. Briefing deadlines alone therefore give neither party a right to appear for oral advocacy.

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